



Family Responsibilities and EEO

Overview

A number of policies and procedures are aimed at helping federal employees achieve an appropriate balance between their work and their personal lives. Despite these opportunities, federal employees sometimes experience problems at work that are related to their familial relationships or responsibilities. These problems don't always have EEO implications, but, as this Quick Start Guide explains, issues can arise that fall within federal antidiscrimination laws. Indeed, guidance issued by the Equal Employment Opportunity Commission notes that: "Although the federal EEO laws do not prohibit discrimination against caregivers per se, there are circumstances which discrimination against caregivers might constitute unlawful disparate treatment." [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).

This Quick Start Guide covers the following Key Points:

- | | |
|---|---|
| 1. Caregiving | 7. Leave |
| 2. Stereotyping | 8. Wages |
| 3. Disparate treatment | 9. Associational discrimination |
| 4. Nursing | 10. Hostile work environment |
| 5. Hiring and promotion | 11. Marital status |
| 6. Training | |

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

Caregiving

- "Employment decisions that discriminate against workers with caregiving responsibilities are prohibited by Title VII if they are based on sex or another protected characteristic, regardless of whether the employer discriminates more broadly against all members of the protected class. For example, sex discrimination against working mothers is prohibited by Title VII even if the employer does not discriminate against childless women." [Footnote omitted.] [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).
- "Title VII does not prohibit discrimination based solely on parental or other caregiver status, so an employer does not generally violate Title VII's disparate treatment proscription if, for example, it treats working mothers and working fathers in a similar unfavorable (or favorable) manner as compared to childless workers." [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).
- "Intentional sex discrimination against workers with caregiving responsibilities can be proven using any of the types of evidence used in other sex discrimination cases." [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).
- The Department of Veterans Affairs appropriately determined that the complainant was not subjected to sex discrimination when a change in her work schedule created a childcare issue that led to her resignation. The EEOC found there was "no question that the lack of available daycare options" during the complainant's first duty hour was a hardship for her but concluded that this inconvenience did not create the sort of intolerable working conditions that would amount to a constructive discharge. *Complainant v. Department of Veterans Affairs*, 0120133059, [115 LRP 7186](#) (EEOC OFO 2015).
- A supervisory criminal investigator for the Army was subjected to a hostile work environment based on her race and sex when a supervisor continuously asked her about her family obligations and whether her family status would affect her job performance, and when the supervisor informed her that he would keep a record of how her children interfered with her ability to perform her duties. Two coworkers teased her about being the single mother of several children and falsely accused her of being disruptive at a training course, which led to her termination. *Complainant v. Department of the Army*, 0720130019, [114 LRP 31251](#) (EEOC OFO 2014).

Stereotyping

- "Because stereotypes that female caregivers should not, will not, or cannot be committed to their jobs are sex-based, employment decisions based on such stereotypes violate Title VII. [Footnote omitted.]" [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).
- "Employment decisions based on such stereotypes violate the federal antidiscrimination statutes, [footnote omitted] even when an employer acts upon such stereotypes unconsciously or reflexively. [Footnote omitted.]" [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).
- "Adverse employment decisions applying sex-based stereotypes are sometimes well-intentioned and perceived by the employer as being in the employee's best interest. [Footnote omitted]. For example, an employer might assume that a working mother would not want to relocate."

to another city, even if it would mean a promotion. [Footnote omitted.]” [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).

- A witness protection inspector for the U.S. Marshals Service was subjected to discrimination based on sex (female/pregnancy) when the agency denied her a lateral transfer. Before she announced her pregnancy, the agency considered her the most qualified for the position, but the evidence showed that her family situation was considered when making the selection. Rather than judging her by her qualification the agency officials believed that her family should not be separated by her being moved to a new city. Male employees were not subject to these considerations when relocations were considered. The EEOC explained that an agency’s decision applying sex-based stereotypes violates Title VII, even if the agency is not acting out of hostility. *Jane Doe v. Department of Justice, U.S. Marshals Service*, [112 LRP 7785](#), EEOC No. 0720090006 (EEOC OFO 2012).
- The complainant, a special agent with the FBI who had two children, was not subjected to sex discrimination when she was removed from part-time program and required to work full time. The agency legitimately explained that the change was based on insufficient staffing. Although a female regional representative for the Female Special Agent Advisory Committee reflected a sex-based stereotype when she asked the complainant if she wanted to be an FBI agent or a mom, there was no evidence that the representative was involved in the complainant being required to work full time. *Camden v. Department of Justice, Federal Bureau of Investigation* [112 LRP 40863](#), EEOC No. 0120093506 (EEOC OFO 2012).
- “[E]mployment decisions that are based on an employee’s actual work performance, rather than assumptions or stereotypes, do not generally violate Title VII, even if an employee’s unsatisfactory work performance is attributable to caregiving responsibilities.” *Ramirez v. Social Security Administration*, [112 LRP 5250](#), EEOC No. 0120101227 (EEOC OFO 2012).
- Caregivers may be subjected to sex discrimination based on stereotyping about parental roles, but in the absence of evidence of such stereotyping, an agency may legitimately take action to address performance issues with an employee who is a new father. *Buck S. v. Department of Agriculture, Food and Nutrition Service*, [117 LRP 8966](#), EEOC No. 0120150623 (EEOC OFO 2017).

Disparate treatment

- Adverse treatment of pregnant women often arises from stereotypes and assumptions about their job capabilities and commitment to the job. For example, an employer might refuse to hire a pregnant woman based on an assumption that she will have attendance problems or leave her job after the child is born. [EEOC Enforcement Guidance: Pregnancy Discrimination and Related Issues \(June 2015\)](#).
- A correctional officer was subjected to sex discrimination when she was terminated during her probationary period for sick leave abuse. Although she was performing competently, she was terminated while similarly situated male coworkers were not penalized. If the agency had asked for medical documentation pursuant to its leave abuse policy, the documentation would have substantiated that the complainant was legitimately using leave for her own illness or for the medical needs of her child. Evidence suggested that she was subjected to heightened standards and increased scrutiny because of her sex and caregiver responsibilities. *Isabelle G. v. Department of Justice, Federal Bureau of Prisons*, [116 LRP 956](#), EEOC No. 0120130362 (EEOC OFO 2015).
- A witness protection inspector for the U.S. Marshals Service was subjected to sex discrimination when she was denied -- after she announced her pregnancy -- a lateral transfer for which she was the most qualified candidate. Rather than making a decision based on qualifications, agency officials decided that her family should not be separated by her being moved to a new city. Male employees were not subjected to these considerations with regard to relocation decisions. *Doe v. Department of Justice, U.S. Marshals Service*, [112 LRP 7785](#), EEOC No. 0720090006 (EEOC OFO 2012).
- The U.S. Postal Service subjected the complainant to sex discrimination when it terminated her for attendance problems. The complainant, a single mother who needed to drop her child off at school on her way to work, admitted that she was often late, but she not that she was only late by a few minutes each time. The manager could not explain why she was treated less favorably than a similarly situated male employee with more egregious attendance problems. *Bridgewater v. U.S. Postal Service*, [107 LRP 54755](#), EEOC No. 0720070028 (EEOC OFO 2007).
- A GS-5 firefighter was subjected to sex discrimination when she was involuntarily reassigned to fire prevention after informing her supervisor that she was pregnant. As a result of the reassignment, her pay was reduced because fire prevention did not provide for premium pay. The agency could not explain why similarly situated male employees were allowed to retain premium pay when they were under medical restrictions. *Kiolbassa v. Department of the Navy*, [106 LRP 28785](#), EEOC No. 01A44221 (EEOC OFO 2006).
- The complainant was terminated from her psychologist position based on substantially unfounded criticisms leveled against her by a female supervisor who was jealous of the complainant’s pregnancy and family life. *Bergmann v. Department of Justice*, [97 FEQ 3179](#), EEOC No. 05960429 (EEOC 1997).
- A defense liaison officer for the Defense Intelligence Agency was not subjected to sex discrimination when a supervisor warned her that she needed to get her family under control or risk her job. The record indicated that there was a problem with one of her children at school and her husband had an altercation with a local citizen. The EEOC noted that the officer worked in a foreign post, where the actions of an American family were scrutinized differently than in the United States. Another employee, who was male, was sent back to the United States because of allegations about his son’s drug use. *Complainant v. Department of Defense, Defense Intelligence Agency*, 0120120417, [114 LRP 16908](#) (EEOC OFO 2014).

Nursing

- The [Providing Urgent Maternal Protections \(PUMP\) for Nursing Mothers Act](#) requires federal agencies to provide a reasonable break time to express breast milk for one year after a child’s birth and a private place other than a bathroom to express milk. It applies to both salaried and hourly employees who are not exempt from the Fair Labor Standards Act.
- The PUMP Act is administered and enforced by the Department of Labor’s Wage and Hour Division, but it entered a September 2023 memorandum of understanding with the EEOC that provides for information sharing to support each agency’s enforcement activities.
- Because only women lactate, a practice that singles out lactation or breastfeeding for less favorable treatment affects only women and therefore is facially sex-based. For example, it would violate Title VII for an employer to freely permit employees to use break time for

personal reasons except to express breast milk. [EEOC Enforcement Guidance: Pregnancy Discrimination and Related Issues \(June 2015\)](#).

- The Department of Homeland Security subjected an agriculture specialist to sex discrimination when it failed to offer her a private space to express breast milk and inhibited her ability to access designated areas to express milk. *Cheryll K. v. Department of Homeland Security, Customs and Border Protection*, [123 LRP 30071](#), EEOC No. 2022001648 (EEOC OFO 2023).
- A general expeditor for the U.S. Postal Service was subjected to sex discrimination when she was not provided a pregnancy-related accommodation -- a clean and private lactation room. On one occasion, the designated lactation room was locked when she needed to express milk, she had to go home to express the milk, and management charged her leave without pay. *Krysten M. v. U.S. Postal Service*, [123 LRP 6894](#), EEOC No. 2021005238 (EEOC OFO 2023).
- For more on this topic, see the [Quick Start Guide: Pregnancy and Birth-Related Discrimination](#).

Hiring and promotion

- "Focus on the applicant's qualifications for the job in question. Do not ask questions about the applicant's or employee's children, plans to start a family, pregnancy, or other caregiving-related issues during interviews or performance reviews." [Employer Best Practices for Work with Caregiving Responsibilities](#).
- The Department of the Navy engaged in sex discrimination when it failed to select the complainant for a facilities manager position. The EEOC found it significant that the complainant testified she was told that as a mother, she would not want a job that required travel. It also noted evidence that she already performed the work at issue in an outstanding manner, and that agency policy generally favored current employees to fill positions. *Thorogood v. Department of the Navy*, [107 LRP 67834](#), EEOC No. 0720070072 (EEOC OFO 2007).
- "Ensure that job openings, acting positions, and promotions are communicated to all eligible employees regardless of caregiving responsibilities." [Employer Best Practices for Workers with Caregiving Responsibilities](#).
- "The impact of work-family conflicts ... extends to professional workers, contributing to the maternal wall or 'glass ceiling' that prevents women from advancing in their careers. As a recent EEOC report reflects, even though women constitute about half of the labor force, there are a much smaller proportion of managers and officials. [Footnote omitted.]" [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).

Training

- "Ensure that employees are given equal opportunity to participate on complex or high-profile work assignments that will enhance their skill and experience and help them ascend to upper-level positions." [Employer Best Practices for Workers with Caregiving Responsibilities](#).

Leave

- "Ensure that leave policies exist and are available to male and female employees on an equal basis. Train managers to ensure that both male and female employees are aware of leave policies and are not implicitly or explicitly discouraged from requesting leave." [Employer Best Practices for Workers with Caregiving Responsibilities](#).
- In response to the complainant's EEO allegations, the agency concluded that its parental leave policy was facially discriminatory in that it provided women with up to 12 months of parental leave, but allowed men only up to nine months of parental leave. The agency stated that it would modify its leave policies, but the EEOC found the complainant also stated a claim for nonpecuniary damages related to the emotional trauma he suffered when he was denied leave to be with his family after his wife gave birth to premature twin boys, one of whom later required emergency neonatal surgery. *Starr v. Department of Transportation*, [97 FEOR 1223](#), EEOC No. 01953151 (EEOC OFO 1997).
- "To avoid a potential Title VII violation, employers should carefully distinguish between pregnancy-related leave and other forms of leave, ensuring that any leave specifically provided to women alone is limited to the period that women are incapacitated by pregnancy and childbirth. [Footnote omitted.]" [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).
- The agency discriminated against the complainant on the basis of sex in denying him a three-month paternity leave to care for his child while his wife returned to work. The agency's policy improperly allowed female employees a three-month maternity leave without supporting documentation of incapacity while allowing male employees just two weeks and then only to care for minor children or the mother of the newborn if she is incapacitated for maternity reasons. *Cline v. U.S. Postal Service*, [94 FEOR 3144](#), EEOC No. 0592030 (EEOC 1993).
- The agency's policy of denying or limiting advanced sick leave for pregnant women was sex-based discrimination. *Ellis-Balone v. Department of Energy*, [105 LRP 871](#), EEOC No. 07A30125 (EEOC OFO 2004).

Wages

- "Part-time workers should receive proportionate wages and benefits compared with full-time workers. [Footnote omitted.] Similarly, part-time workers should receive proportionate credit for relevant experience needed to qualify for promotions, training programs, or other employment opportunities." [Employer Best Practices for Workers with Caregiving Responsibilities](#).

Associational discrimination

- "It is unlawful for a covered entity to exclude or deny equal jobs or benefits to, or otherwise discriminate against, a qualified individual because of the known disability of an individual with whom the qualified individual is known to have a family, business, social or other relationship or association." [29 CFR 1630.8](#).

- An employee states a viable claim when he alleges that he is being discriminated against because of his relationship with his learning disabled children. *Johnson v. Department of the Army*, [107 LRP 55061](#), EEOC No. 0120072415 (2007).
- The complainant stated a viable claim of disparate treatment based on his association with his disabled daughter when he alleged management changed five days of sick leave he used to care for his daughter to annual leave, even though he had approval for protection under the Family and Medical Leave Act. *Stoltz v. U.S. Postal Service*, [105 LRP 43177](#), EEOC No. 01A53899 (EEOC OFO 2005).
- The complainant stated a claim of associational discrimination in his allegation that he was subjected to disability discrimination when his insurance, which was part of the Federal Employee Health Benefits Program, denied coverage of his wife's bone marrow transplant. *Polifko v. Office of Personnel Management*, [95 FEOR 3113](#), EEOC No. 05940611 (EEOC 1995).
- A service representative for the Social Security Administration was subjected to harassment motivated by her association with her disabled child. The EEOC found that constant uncertainty about whether a single parent with a disabled child would be granted leave to deal with medical emergencies and having every leave request subject to heightened scrutiny despite management's knowledge of the child's condition is sufficient to establish a hostile work environment. *Eleanore M. v. Social Security Administration*, [117 LRI 8902](#), EEOC No. 0720160024 (EEOC OFO 2017).
- An education program administrator for the Bureau of Indian Affairs was not entitled to accessible housing because of her husband's disability. Employees with a relationship or association with an individual with a disability are not entitled to reasonable accommodation for that individual. *Davis v. Department of the Interior, Bureau of Indian Affairs*, [113 LRP 7944](#), EEOC No. 0120123517 (EEOC OFO 2013).
- The agency did not subject the complainant to disability discrimination when it denied his request for a shift change so he could care for his autistic son. People associated with an individual who has a disability are entitled to Rehabilitation Act protection against discrimination on the basis of that association. However, the law only prohibits disparate treatment based on the association. An agency is not required to provide reasonable accommodation for an employee or applicant for employment based on the disability of an associate. *Helena v. Department of Defense, Defense Logistics Agency*, [104 LRP 45781](#), EEOC No. 07A30108 (EEOC 2004).
- The complainant alleged he was discriminated against based on his association with a disabled person (his spouse) when the agency denied him a reasonable accommodation of a hardship transfer. The EEOC affirmed the agency's dismissal of the complaint for failure to state a claim, noting that individuals with a relationship or association with a person with a disability are not entitled to receive reasonable accommodations. *Lazer v. Department of Transportation*, [103 LRP 4288](#), EEOC No. 01A24474 (EEOC OFO 2003).

Hostile work environment

- "Employers should take steps to prevent harassment directed at caregivers or pregnant workers from occurring in the workplace and to promptly correct any such conduct that does occur. In turn, employees who are subjected to such harassment should follow the employer harassment complaint process or otherwise notify the employer about the conduct, so that the employer can investigate the matter and take appropriate action." [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#).
- A manager subjected an environmental protection specialist to discriminatory harassment based on her race (Asian), national origin (Nepali), and sex. The manager offered her unsolicited and inappropriate sex advice related to her pregnancy. When the specialist returned from birth-related leave, the manager referred to her as "mom." He monitored and commented on her whereabouts every time she used the Mother's Room to pump breast milk. The manager also disregarded the proper pronunciation of the specialist's name and made inappropriate comments related to her race and national origin. *Assunta V. v. Department of Homeland Security, Federal Emergency Management Agency*, [123 LRP 15683](#), EEOC No. 2021003725 (EEOC OFO 2023).
- A service representative for the Social Security Administration was subjected to harassment motivated by her association with her disabled child. The EEOC found that constant uncertainty about whether a single parent with a disabled child would be granted leave to deal with medical emergencies and having every leave request subject to heightened scrutiny despite management's knowledge of the child's condition is sufficient to establish a hostile work environment. *Eleanore M. v. Social Security Administration*, [117 LRI 8902](#), EEOC No. 0720160024 (EEOC OFO 2017).
- The complainant's supervisor subjected her to a sex-based hostile work environment, in part when he denied her leave requests, threatened her with termination after she informed him she was pregnant, and falsely accused her of misconduct. Because the harassment culminated in the complainant's termination, the agency could not avoid liability. Although she was reinstated, the agency's failure to provide her with a different supervisor upon her return from maternity leave led to her constructive discharge. *Complainant v. Department of Defense, Department of the Air Force*, [0520140092](#), [115 LRP 9438](#) (EEOC OFO 2015).
- A supervisory criminal investigator for the Army was subjected to a hostile work environment based on her race and sex when a supervisor continuously asked her about her family obligations and whether her family status would affect her job performance, and when the supervisor informed her that he would keep a record of how her children interfered with her ability to perform her duties. Two coworkers teased her about being the single mother of several children and falsely accused her of being disruptive at a training course, which led to her termination. *Complainant v. Department of the Army*, [0720130019](#), [114 LRP 31251](#) (EEOC OFO 2014).
- The complainant, a federal air marshal, was subjected to discrimination on the basis of her sex by a superior who "expressed the view that women should choose between being law enforcement officers or mothers." He harassed her with degrading and humiliating remarks during a meeting, and denied her request to be taken off flight duty when she became pregnant. He punished her for her pregnancy when he told her to report for light duty in Atlantic City even though light duty was available in New York, nearer her home. *Cestero v. Department of Homeland Security, Transportation Security Administration*, [110 LRP 25966](#), EEOC No. 0120080771 (EEOC OFO 2010).
- The complainant, a podiatric physician, was subjected to a hostile work environment because of her pregnancy and her prior EEO activity. Another doctor constantly made inappropriate and demeaning comments about her pregnancy, and threatened to terminate her because of her pregnancy. The doctor said the complainant could not get another residency because she "had too many kids and nobody wanted her as resident with all those kids." She was awarded \$70,000 in nonpecuniary damages. *Crear v. Department of Veterans Affairs*, [106 LRP 5638](#), EEOC No. 07A50079 (EEOC OFO 2006).

Marital status

- The EEOC has no jurisdiction over discrimination claims based on marital status. *Kittrell v. Department of Veterans Affairs*, [110 LRP 12851](#), EEOC No. 0120093863 (EEOC OFO 2010).
- **Hadley:** The Commission has no jurisdiction over claims based on marital status. Nor does it have jurisdiction over claims based on having or not having children. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Marital Status](#).
- The complainant claimed that she was discriminated against because she was a single, divorced mother with children, who had to regularly exhaust her leave to take care of her kids. Although a claim that male caregivers were treated more favorably under similar circumstance: would have been viable under Title VII, her claim of unequal treatment based on marital status was not. *Ramirez v. Social Security Administration*, [112 LRP 5250](#), EEOC No. 0120101227 (EEOC OFO 2012).

Other Resources

- [Quick Start Guide: Pregnancy and Birth-Related Discrimination](#)
- [EEOC Enforcement Guidance: Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#)
- [EEOC: Employer Best Practices for Workers with Caregiving Responsibilities](#)
- [Questions and Answers about EEOC's Enforcement Guidance on Unlawful Disparate Treatment of Workers with Caregiving Responsibilities](#)
- [EEOC Fact Sheet: Facts About Pregnancy Discrimination](#)

For more guidance, see:

- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 13 -- Bases of Discrimination Under Title VII, Subchapter 02: Sex Discrimination, Section C -- Marital Status](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice -- Chapter 14 -- Rehabilitation Act and GINA, Subchapter 01: Application of the Act, Section C -- Agencies and Employees Covered, Subsection 04 -- Association With Persons with Disabilities](#)

Please share your experience and expertise. Forward any suggested additions or changes to this or other Quick Start Guides to QSGeditor@lrp.com.



© LRP Publications. All Rights Reserved.